DIVISION BENCH ITEM NO.114

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.4/ALD/2023 IN CA (CAA) No.20/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 15th February, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**JINDAL QUALITY TUBULAR LTD. WITH JINDAL SAW LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Shashi Kant Gupta, PCS *: For the Petitioner Company*

Sh. Krishna Dev Vyas, Adv. *: For the ROC*

Sh. Niraj Kumar Singh, Proxy for Sh. Gaurav Mahajan, Sr. S.C. *: For the I.T. Deptt.*

Sh. Ajit Kumar Singh, AOL *: For the O.L. Alld.*

ORDER

Ld. Counsels representing the respective parties, are present through VC.

1. In this case, the reports on behalf of the Official Liquidator/RD as well as the Income Tax Department have been filed.

2. Ld. Counsel representing the RoC/RD states that as per the reports filed, there are no adverse observations against the present scheme.

3. With respect to the Income Tax Department report, some outstanding amounts have been shown, which are liable to be paid by the Petitioner Companies.

-Sd- ***-Sd-***

4. With respect to any proceeding pending under the Income Tax Act, Ld. Counsel representing the petitioner companies states that the affidavit has been filed. The same is taken on record vide Diary no. 284 dated 31st January, 2024 and as per para 3 of the said affidavit, the petitioner companies have given undertaking with respect to continuity of any proceedings as also compliance of provisions of the Act.

5. Another affidavit vide Diary No.416 dated 12th February, 2024 has been filed whereby vide para no.3, it is stated that the only outstanding tax of Rs. 1,05,790 for the assessment year 2022-2023 had been adjusted against the refund for the said period. It is further stated at para 4 of the said affidavit that the communication in this regard has been received from the Income Tax Department which is placed at its page 6 the said affidavit filed vide Diary no.416 dated 12th February, 2024 is also taken on record.

6. Heard order reserved.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

15th February, 2024

Bipul Kumar Tiwari
(Stenographer)